

```
--
-- PostgreSQL database dump
--
```

```
\restrict w2Y58Lj7FeuHvQKkaxjY9qnJMhkGRJxEYzpoAlnwktJ63cpXoCRmKT4yjHRDqNU
```

```
-- Dumped from database version 16.10
-- Dumped by pg_dump version 16.10
```

```
SET statement_timeout = 0;
SET lock_timeout = 0;
SET idle_in_transaction_session_timeout = 0;
SET client_encoding = 'UTF8';
SET standard_conforming_strings = on;
SELECT pg_catalog.set_config('search_path', '', false);
SET check_function_bodies = false;
SET xmloption = content;
SET client_min_messages = warning;
SET row_security = off;
```

```
SET default_tablespace = '';
```

```
SET default_table_access_method = heap;
```

```
--
-- Name: analysis_runs; Type: TABLE; Schema: public; Owner: postgres
--
```

```
CREATE TABLE public.analysis_runs (
    id integer NOT NULL,
    case_id integer NOT NULL,
    document_id integer NOT NULL,
    model text NOT NULL,
    input_tokens integer DEFAULT 0 NOT NULL,
    output_tokens integer DEFAULT 0 NOT NULL,
    duration_ms integer DEFAULT 0 NOT NULL,
    findings_returned integer DEFAULT 0 NOT NULL,
    findings_dropped integer DEFAULT 0 NOT NULL,
    findings_verified integer DEFAULT 0 NOT NULL,
    findings_unverified integer DEFAULT 0 NOT NULL,
    findings_no_index integer DEFAULT 0 NOT NULL,
    status text DEFAULT 'success'::text NOT NULL,
    error_message text,
    created_at timestamp without time zone DEFAULT now() NOT NULL
);
```

```
);
```

```
ALTER TABLE public.analysis_runs OWNER TO postgres;
```

```
--
```

```
-- Name: analysis_runs_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
```

```
--
```

```
CREATE SEQUENCE public.analysis_runs_id_seq
  AS integer
  START WITH 1
  INCREMENT BY 1
  NO MINVALUE
  NO MAXVALUE
  CACHE 1;
```

```
ALTER SEQUENCE public.analysis_runs_id_seq OWNER TO postgres;
```

```
--
```

```
-- Name: analysis_runs_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres
```

```
--
```

```
ALTER SEQUENCE public.analysis_runs_id_seq OWNED BY public.analysis_runs.id;
```

```
--
```

```
-- Name: case_strategies; Type: TABLE; Schema: public; Owner: postgres
```

```
--
```

```
CREATE TABLE public.case_strategies (
  id integer NOT NULL,
  case_id integer NOT NULL,
  cumulative_error_brief text NOT NULL,
  strategic_roadmap text NOT NULL,
  created_at timestamp without time zone DEFAULT now() NOT NULL,
  updated_at timestamp without time zone DEFAULT now() NOT NULL
);
```

```
ALTER TABLE public.case_strategies OWNER TO postgres;
```

```

--
-- Name: case_strategies_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
--

CREATE SEQUENCE public.case_strategies_id_seq
  AS integer
  START WITH 1
  INCREMENT BY 1
  NO MINVALUE
  NO MAXVALUE
  CACHE 1;

ALTER SEQUENCE public.case_strategies_id_seq OWNER TO postgres;

--
-- Name: case_strategies_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner:
postgres
--

ALTER SEQUENCE public.case_strategies_id_seq OWNED BY public.case_strategies.id;

--
-- Name: cases; Type: TABLE; Schema: public; Owner: postgres
--

CREATE TABLE public.cases (
  id integer NOT NULL,
  title text NOT NULL,
  defendant_name text,
  case_number text,
  jurisdiction text,
  notes text,
  has_analysis boolean DEFAULT false NOT NULL,
  has_motion boolean DEFAULT false NOT NULL,
  created_at timestamp without time zone DEFAULT now() NOT NULL,
  updated_at timestamp without time zone DEFAULT now() NOT NULL
);

ALTER TABLE public.cases OWNER TO postgres;

--

```

```
-- Name: cases_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
--
```

```
CREATE SEQUENCE public.cases_id_seq
  AS integer
  START WITH 1
  INCREMENT BY 1
  NO MINVALUE
  NO MAXVALUE
  CACHE 1;
```

```
ALTER SEQUENCE public.cases_id_seq OWNER TO postgres;
```

```
--
-- Name: cases_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres
--
```

```
ALTER SEQUENCE public.cases_id_seq OWNED BY public.cases.id;
```

```
--
-- Name: categories; Type: TABLE; Schema: public; Owner: postgres
--
```

```
CREATE TABLE public.categories (
  id integer NOT NULL,
  name text NOT NULL,
  badge_label text NOT NULL,
  description text,
  color text DEFAULT 'blue'::text NOT NULL,
  created_at timestamp without time zone DEFAULT now() NOT NULL
);
```

```
ALTER TABLE public.categories OWNER TO postgres;
```

```
--
-- Name: categories_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
--
```

```
CREATE SEQUENCE public.categories_id_seq
  AS integer
  START WITH 1
```

```
INCREMENT BY 1
NO MINVALUE
NO MAXVALUE
CACHE 1;
```

```
ALTER SEQUENCE public.categories_id_seq OWNER TO postgres;
```

```
--
-- Name: categories_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres
--
```

```
ALTER SEQUENCE public.categories_id_seq OWNED BY public.categories.id;
```

```
--
-- Name: court_rounds; Type: TABLE; Schema: public; Owner: postgres
--
```

```
CREATE TABLE public.court_rounds (
    id integer NOT NULL,
    session_id integer NOT NULL,
    round_number integer NOT NULL,
    state_strength text NOT NULL,
    defense_burden text NOT NULL,
    state_argument text NOT NULL,
    court_commentary text NOT NULL,
    defense_response text NOT NULL,
    created_at timestamp without time zone DEFAULT now() NOT NULL
);
```

```
ALTER TABLE public.court_rounds OWNER TO postgres;
```

```
--
-- Name: court_rounds_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
--
```

```
CREATE SEQUENCE public.court_rounds_id_seq
    AS integer
    START WITH 1
    INCREMENT BY 1
    NO MINVALUE
    NO MAXVALUE
```

CACHE 1;

ALTER SEQUENCE public.court\_rounds\_id\_seq OWNER TO postgres;

--  
-- Name: court\_rounds\_id\_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres  
--

ALTER SEQUENCE public.court\_rounds\_id\_seq OWNED BY public.court\_rounds.id;

--  
-- Name: court\_sessions; Type: TABLE; Schema: public; Owner: postgres  
--

CREATE TABLE public.court\_sessions (  
 id integer NOT NULL,  
 case\_id integer NOT NULL,  
 simulation\_mode text NOT NULL,  
 skeptic\_mode boolean DEFAULT false NOT NULL,  
 expanded\_record boolean DEFAULT false NOT NULL,  
 plea\_questionnaire\_notes text,  
 document\_ids text DEFAULT '[]'::text NOT NULL,  
 status text DEFAULT 'pending'::text NOT NULL,  
 verdict\_rating text,  
 verdict\_summary text,  
 defense\_won boolean,  
 total\_rounds integer,  
 created\_at timestamp without time zone DEFAULT now() NOT NULL,  
 updated\_at timestamp without time zone DEFAULT now() NOT NULL  
);

ALTER TABLE public.court\_sessions OWNER TO postgres;

--  
-- Name: court\_sessions\_id\_seq; Type: SEQUENCE; Schema: public; Owner: postgres  
--

CREATE SEQUENCE public.court\_sessions\_id\_seq  
 AS integer  
 START WITH 1

```
INCREMENT BY 1
NO MINVALUE
NO MAXVALUE
CACHE 1;
```

```
ALTER SEQUENCE public.court_sessions_id_seq OWNER TO postgres;
```

```
--
-- Name: court_sessions_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner:
postgres
--
```

```
ALTER SEQUENCE public.court_sessions_id_seq OWNED BY public.court_sessions.id;
```

```
--
-- Name: cross_case_matches; Type: TABLE; Schema: public; Owner: postgres
--
```

```
CREATE TABLE public.cross_case_matches (
    id integer NOT NULL,
    finding_id integer NOT NULL,
    source_document_id integer NOT NULL,
    source_document_title text NOT NULL,
    matched_passage text NOT NULL,
    explanation text NOT NULL,
    relevance_score numeric DEFAULT '0'::numeric NOT NULL,
    created_at timestamp without time zone DEFAULT now() NOT NULL
);
```

```
ALTER TABLE public.cross_case_matches OWNER TO postgres;
```

```
--
-- Name: cross_case_matches_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres
--
```

```
CREATE SEQUENCE public.cross_case_matches_id_seq
    AS integer
    START WITH 1
    INCREMENT BY 1
    NO MINVALUE
    NO MAXVALUE
```

CACHE 1;

ALTER SEQUENCE public.cross\_case\_matches\_id\_seq OWNER TO postgres;

--  
-- Name: cross\_case\_matches\_id\_seq; Type: SEQUENCE OWNED BY; Schema: public;  
Owner: postgres  
--

ALTER SEQUENCE public.cross\_case\_matches\_id\_seq OWNED BY  
public.cross\_case\_matches.id;

--  
-- Name: documents; Type: TABLE; Schema: public; Owner: postgres  
--

CREATE TABLE public.documents (  
id integer NOT NULL,  
case\_id integer NOT NULL,  
title text NOT NULL,  
document\_type text DEFAULT 'other'::text NOT NULL,  
content text NOT NULL,  
status text DEFAULT 'pending'::text NOT NULL,  
finding\_count integer DEFAULT 0 NOT NULL,  
created\_at timestamp without time zone DEFAULT now() NOT NULL,  
updated\_at timestamp without time zone DEFAULT now() NOT NULL,  
word\_data jsonb,  
pdf\_storage\_path text  
);

ALTER TABLE public.documents OWNER TO postgres;

--  
-- Name: documents\_id\_seq; Type: SEQUENCE; Schema: public; Owner: postgres  
--

CREATE SEQUENCE public.documents\_id\_seq  
AS integer  
START WITH 1  
INCREMENT BY 1  
NO MINVALUE

```
NO MAXVALUE  
CACHE 1;
```

```
ALTER SEQUENCE public.documents_id_seq OWNER TO postgres;
```

```
--  
-- Name: documents_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres  
--
```

```
ALTER SEQUENCE public.documents_id_seq OWNED BY public.documents.id;
```

```
--  
-- Name: findings; Type: TABLE; Schema: public; Owner: postgres  
--
```

```
CREATE TABLE public.findings (  
    id integer NOT NULL,  
    document_id integer NOT NULL,  
    case_id integer NOT NULL,  
    issue_title text NOT NULL,  
    transcript_excerpt text NOT NULL,  
    legal_analysis text NOT NULL,  
    precedent_name text,  
    precedent_citation text,  
    precedent_type text,  
    court_ruling text,  
    material_similarity text,  
    category_id integer,  
    user_notes text,  
    created_at timestamp without time zone DEFAULT now() NOT NULL,  
    page_number integer,  
    line_number integer,  
    procedural_status text,  
    anticipated_block text,  
    breakthrough_argument text,  
    legal_vehicle text,  
    survivability text,  
    bbox_data jsonb,  
    citation_verified boolean  
);
```

```
ALTER TABLE public.findings OWNER TO postgres;
```

```
--  
-- Name: findings_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres  
--
```

```
CREATE SEQUENCE public.findings_id_seq  
    AS integer  
    START WITH 1  
    INCREMENT BY 1  
    NO MINVALUE  
    NO MAXVALUE  
    CACHE 1;
```

```
ALTER SEQUENCE public.findings_id_seq OWNER TO postgres;
```

```
--  
-- Name: findings_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres  
--
```

```
ALTER SEQUENCE public.findings_id_seq OWNED BY public.findings.id;
```

```
--  
-- Name: motions; Type: TABLE; Schema: public; Owner: postgres  
--
```

```
CREATE TABLE public.motions (  
    id integer NOT NULL,  
    case_id integer NOT NULL,  
    session_id integer,  
    title text NOT NULL,  
    content text NOT NULL,  
    created_at timestamp without time zone DEFAULT now() NOT NULL  
);
```

```
ALTER TABLE public.motions OWNER TO postgres;
```

```
--  
-- Name: motions_id_seq; Type: SEQUENCE; Schema: public; Owner: postgres  
--
```

```
CREATE SEQUENCE public.motions_id_seq
AS integer
START WITH 1
INCREMENT BY 1
NO MINVALUE
NO MAXVALUE
CACHE 1;
```

```
ALTER SEQUENCE public.motions_id_seq OWNER TO postgres;
```

```
--
-- Name: motions_id_seq; Type: SEQUENCE OWNED BY; Schema: public; Owner: postgres
--
```

```
ALTER SEQUENCE public.motions_id_seq OWNED BY public.motions.id;
```

```
--
-- Name: analysis_runs id; Type: DEFAULT; Schema: public; Owner: postgres
--
```

```
ALTER TABLE ONLY public.analysis_runs ALTER COLUMN id SET DEFAULT
nextval('public.analysis_runs_id_seq'::regclass);
```

```
--
-- Name: case_strategies id; Type: DEFAULT; Schema: public; Owner: postgres
--
```

```
ALTER TABLE ONLY public.case_strategies ALTER COLUMN id SET DEFAULT
nextval('public.case_strategies_id_seq'::regclass);
```

```
--
-- Name: cases id; Type: DEFAULT; Schema: public; Owner: postgres
--
```

```
ALTER TABLE ONLY public.cases ALTER COLUMN id SET DEFAULT
nextval('public.cases_id_seq'::regclass);
```

```
--
-- Name: categories id; Type: DEFAULT; Schema: public; Owner: postgres
```

--

```
ALTER TABLE ONLY public.categories ALTER COLUMN id SET DEFAULT
nextval('public.categories_id_seq'::regclass);
```

--

-- Name: court\_rounds id; Type: DEFAULT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.court_rounds ALTER COLUMN id SET DEFAULT
nextval('public.court_rounds_id_seq'::regclass);
```

--

-- Name: court\_sessions id; Type: DEFAULT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.court_sessions ALTER COLUMN id SET DEFAULT
nextval('public.court_sessions_id_seq'::regclass);
```

--

-- Name: cross\_case\_matches id; Type: DEFAULT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.cross_case_matches ALTER COLUMN id SET DEFAULT
nextval('public.cross_case_matches_id_seq'::regclass);
```

--

-- Name: documents id; Type: DEFAULT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.documents ALTER COLUMN id SET DEFAULT
nextval('public.documents_id_seq'::regclass);
```

--

-- Name: findings id; Type: DEFAULT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.findings ALTER COLUMN id SET DEFAULT
nextval('public.findings_id_seq'::regclass);
```

```
--
-- Name: motions id; Type: DEFAULT; Schema: public; Owner: postgres
--
```

```
ALTER TABLE ONLY public.motions ALTER COLUMN id SET DEFAULT
nextval('public.motions_id_seq'::regclass);
```

```
--
-- Data for Name: analysis_runs; Type: TABLE DATA; Schema: public; Owner: postgres
--
```

```
COPY public.analysis_runs (id, case_id, document_id, model, input_tokens, output_tokens,
duration_ms, findings_returned, findings_dropped, findings_verified, findings_unverified,
findings_no_index, status, error_message, created_at) FROM stdin;
\.
```

```
--
-- Data for Name: case_strategies; Type: TABLE DATA; Schema: public; Owner: postgres
--
```

```
COPY public.case_strategies (id, case_id, cumulative_error_brief, strategic_roadmap,
created_at, updated_at) FROM stdin;
\.
```

```
--
-- Data for Name: cases; Type: TABLE DATA; Schema: public; Owner: postgres
--
```

```
COPY public.cases (id, title, defendant_name, case_number, jurisdiction, notes, has_analysis,
has_motion, created_at, updated_at) FROM stdin;
2      State v. Marcus Johnson — DEMO  Marcus Deon Johnson      2021CF003117
Milwaukee County Circuit Court, State of Wisconsin DEMO CASE — Pre-loaded example
showing CaseLight's full analysis capabilities. This case contains realistic findings, court
simulation, and motion generation based on a fictional post-conviction scenario.  t      t
2026-04-08 02:30:11.807478 2026-04-08 02:30:11.807478
1      State v. Marcus Johnson — DEMO  Marcus Deon Johnson      MKE-2018CF000847
Milwaukee County Circuit Court, State of Wisconsin\N      t      t      2026-04-05
22:50:07.166501      2026-04-05 22:50:07.166501
\.
```

--

-- Data for Name: categories; Type: TABLE DATA; Schema: public; Owner: postgres

--

COPY public.categories (id, name, badge\_label, description, color, created\_at) FROM stdin;

|    |                              |                  |                                                                                 |        |                            |
|----|------------------------------|------------------|---------------------------------------------------------------------------------|--------|----------------------------|
| 1  | Miranda/5th Amendment        | Miranda          | Violations of Miranda rights and Fifth Amendment self-incrimination protections | red    | 2026-04-06 04:06:03.964173 |
| 2  | Brady/Giglio                 | Brady            | Suppression of exculpatory or impeachment evidence by the prosecution           | orange | 2026-04-06 04:06:03.964173 |
| 3  | IAC — Trial Counsel          | IAC Trial        | Ineffective assistance of trial counsel under Strickland v. Washington          | yellow | 2026-04-06 04:06:03.964173 |
| 4  | IAC — Appellate Counsel      | IAC Appeal       | Ineffective assistance of appellate counsel                                     | yellow | 2026-04-06 04:06:03.964173 |
| 5  | Prosecutorial Misconduct     | Pros. Misconduct | Improper conduct by the prosecution during trial or investigation               | red    | 2026-04-06 04:06:03.964173 |
| 6  | 4th Amendment                | 4th Amend.       | Unlawful searches and seizures in violation of the Fourth Amendment             | blue   | 2026-04-06 04:06:03.964173 |
| 7  | Confrontation Clause         | Confrontation    | Violations of the Sixth Amendment right to confront witnesses                   | blue   | 2026-04-06 04:06:03.964173 |
| 8  | Jury Instructions            | Jury Instr.      | Erroneous or misleading jury instructions affecting the verdict                 | purple | 2026-04-06 04:06:03.964173 |
| 9  | Chain of Custody             | Chain of Custody | Breaks or irregularities in evidence chain of custody                           | gray   | 2026-04-06 04:06:03.964173 |
| 10 | Eyewitness Identification    | Eyewitness ID    | Unreliable or improperly obtained eyewitness identifications                    | orange | 2026-04-06 04:06:03.964173 |
| 11 | Coerced Confession           | Coerced Conf.    | Confessions obtained through coercion, duress, or improper inducement           | red    | 2026-04-06 04:06:03.964173 |
| 12 | Sentencing Error             | Sentencing       | Legal errors in sentencing, including improper enhancements or calculations     | purple | 2026-04-06 04:06:03.964173 |
| 13 | Jury Selection/Batson        | Batson           | Discriminatory use of peremptory challenges under Batson v. Kentucky            | teal   | 2026-04-06 04:06:03.964173 |
| 14 | Forensic/Scientific Evidence | Forensic         | Issues with forensic or scientific evidence reliability and admissibility       | green  | 2026-04-06 04:06:03.964173 |
| 15 | Newly Discovered Evidence    | New Evidence     | Evidence discovered after trial that could affect the verdict                   | green  | 2026-04-06 04:06:03.964173 |
| 16 | Actual Innocence             | Actual Innocence | Claims of factual innocence supported by new or overlooked evidence             | green  | 2026-04-06 04:06:03.964173 |
| 17 | Double Jeopardy              | Double Jeopardy  | Prosecution or punishment in violation of double jeopardy protections           | blue   | 2026-04-06 04:06:03.964173 |
| 18 | Speedy Trial                 | Speedy Trial     | Violations of the Sixth Amendment right to a speedy trial                       | blue   | 2026-04-06 04:06:03.964173 |

|    |                      |                  |                                                                             |        |                            |
|----|----------------------|------------------|-----------------------------------------------------------------------------|--------|----------------------------|
| 19 | Government Informant | Informant        | Issues with undisclosed or unreliable government informants                 | orange | 2026-04-06 04:06:03.964173 |
| 20 | Due Process          | Due Process      | Violations of procedural or substantive due process rights                  | blue   | 2026-04-06 04:06:03.964173 |
| 21 | Expert Witness       | Expert Witness   | Improper admission or exclusion of expert witness testimony                 | gray   | 2026-04-06 04:06:03.964173 |
| 22 | Cumulative Error     | Cumulative Error | Prejudice resulting from the cumulative effect of multiple trial errors     | purple | 2026-04-06 04:06:03.964173 |
| 23 | Plea Voluntariness   | Plea             | Challenges to the knowing or voluntary nature of a guilty plea              | yellow | 2026-04-06 04:06:03.964173 |
| 24 | Conflict of Interest | Conflict         | Defense counsel operating under an actual or potential conflict of interest | red    | 2026-04-06 04:06:03.964173 |

\.

--  
-- Data for Name: court\_rounds; Type: TABLE DATA; Schema: public; Owner: postgres  
--

COPY public.court\_rounds (id, session\_id, round\_number, state\_strength, defense\_burden, state\_argument, court\_commentary, defense\_response, created\_at) FROM stdin;

|   |   |   |          |                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                               |
|---|---|---|----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1 | 1 | 1 | MODERATE | Defense must demonstrate that the Miranda invocation was sufficiently clear to trigger the Edwards rule and that the resulting statement was not harmless beyond a reasonable doubt. | Your Honor, the State will address the procedural posture before reaching the merits. Defense counsel raises a Miranda claim for the first time in post-conviction proceedings, which raises an immediate Escalona-Naranjo procedural bar — this claim was never raised on direct appeal, and no sufficient reason has been offered for that failure. The claim is forfeited. |
|---|---|---|----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

\n\nOn the merits, even if this Court entertains the Miranda argument, Davis v. United States, 512 U.S. 452 (1994), requires that a request for counsel be unambiguous. 'Maybe I should talk to someone' is a textbook equivocal statement. Detective Rodriguez, a 17-year veteran, made a reasonable, good-faith judgment that no invocation had occurred. The Supreme Court in Davis was explicit: an ambiguous statement does not require police to stop questioning.\n\nFinally, even if error occurred, it was harmless beyond a reasonable doubt under Chapman v. California. The statement obtained was that Johnson 'wasn't anywhere near the scene' — a denial he repeated from the witness stand. The statement was cumulative of his own testimony and added nothing to the State's case that the physical evidence and eyewitness identifications did not already establish. Counsel, I have concerns about the procedural posture. Mr. Johnson — the record indicates this Miranda claim was not raised at trial by objection at the time the statement was admitted, nor on direct appeal. Walk me through your cause-and-prejudice argument for overcoming Escalona-Naranjo.\n\nOn the Davis question, I'm also troubled by the 'maybe I should' formulation. The Supreme Court was quite clear in Davis. However, I note that Rodriguez's own testimony raises a factual question — he acknowledged the statement, acknowledged he continued questioning, and acknowledged he made a personal judgment. Can defense speak to whether the trial court was

ever asked to make a finding on this issue?\n\nFinally, on harmless error — the State argues the statement was cumulative. Is that accurate? Was any portion of that statement not covered by Johnson's own testimony? Your Honor, we go directly to cause and prejudice for Escalona-Naranjo. The sufficient reason for not raising this claim on direct appeal is the ineffective assistance of appellate counsel — counsel who also failed to raise it and whose deficiency is itself an independent IAC claim. Under State v. Romero-Georgana, 2014 WI 83, IAC of appellate counsel constitutes cause sufficient to overcome Escalona-Naranjo. That independently viable claim unlocks the procedural gateway.\n\nOn Davis — the State reads Davis too broadly. Davis established a clarity requirement for ambiguous invocations, but it did not eliminate the obligation to clarify when the circumstances create ambiguity. More importantly, Wisconsin courts applying Davis look at the totality of the circumstances. Here, the detective himself acknowledged uncertainty — 'he said something like' — and chose to press on. That choice, made without clarification, cannot be insulated from constitutional review.\n\nOn harmless error under Chapman, the State is wrong that the statement was cumulative. Johnson's trial testimony denied presence at the scene, but the statement to Rodriguez included details about his location that were used to undermine his alibi at trial. Those details — extracted after the invocation — were used in closing argument against him. The error was not harmless. 2026-04-05 22:50:07.249114

2 1 2 MINIMAL Defense must demonstrate materiality of the Whitfield statement under the Brady standard — that there is a reasonable probability the result would have been different had the statement been disclosed. Your Honor, on the Brady claim regarding the Whitfield statement, the State's position is straightforward: materiality is not established here. Under Strickler v. Greene, 527 U.S. 263 (1999), the defendant must show a reasonable probability — not merely a possibility — that disclosure would have produced a different result. The State had two additional eyewitnesses who unequivocally identified Johnson. One equivocal witness, even if fully disclosed and presented, does not undermine the strength of two consistent identifications plus the physical evidence of the firearm in Johnson's vehicle.\n\nMoreover, Detective Rodriguez testified that the Whitfield statement was 'in the file.' Defense counsel had an obligation to review the complete discovery file and request any witness statements. If the statement was not produced, the appropriate remedy was a pretrial motion to compel — not a post-conviction Brady claim.\n\nThe State also raises AEDPA deference: the state courts found no Brady violation. That determination is entitled to deference under 28 U.S.C. § 2254(d). Defense must show not merely that the state court was wrong, but that it unreasonably applied clearly established federal law. I'm going to stop the State right there on the 'in the file' argument. Detective Rodriguez testified on the stand that 'we didn't use his statement' — that is not a disclosure. That is the opposite of disclosure. If the statement was deliberately set aside by the investigating detective and never produced to defense counsel, the State cannot now argue that defense had constructive knowledge of it.\n\nThe materiality question is harder. Counsel, what is the full record of the eyewitness evidence? The Whitfield statement expresses doubt — how does that interact with the other two identifications? And can you tell me whether defense counsel made any inquiry into the Whitfield statement before or during trial beyond the objection I see on the record? Your Honor, the State's AEDPA argument fails because the state court did not conduct a proper Brady materiality analysis — it denied the claim in a summary order without opinion. Under Harrington v. Richter, 562 U.S. 86

(2011), a summary denial is still entitled to deference, but where the state court's analysis is facially incomplete — as it is here — the federal court conducts a more searching review.\n\nOn materiality: the Brady analysis requires looking at the suppressed evidence in the context of the entire record. The State had two consistent eyewitnesses and one equivocal one. But eyewitness identification is the most contested category of evidence in criminal law. Under *Perry v. New Hampshire*, 565 U.S. 228 (2012), the reliability of eyewitness evidence is precisely the kind of issue juries must weigh carefully. A third eyewitness expressing doubt does not merely reduce the State's case by one-third — it creates reasonable doubt about the reliability of the entire identification framework.\n\nDetective Rodriguez's admission — 'we didn't use his statement' — is tantamount to an admission of willful suppression under *Giglio*. Willful suppression is sufficient for Brady materiality without needing to quantify the precise impact.

2026-04-05 22:50:07.252846

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when counsel has no record of any investigation at all. Bowes filed no investigative notes, no subpoenas, no correspondence with Webb. Under those circumstances, Strickland's presumption of strategy has nothing to attach to. The claim survives to a Machner hearing.  
2026-04-05 22:50:07.256117

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5        2        1        MODERATE        Defense must demonstrate that the Miranda invocation was sufficiently clear to trigger the Edwards rule and that the resulting statement was not harmless beyond a reasonable doubt. Your Honor, the State will address the procedural posture before reaching the merits. Defense counsel raises a Miranda claim for the first time in post-conviction proceedings, which raises an immediate Escalona-Naranjo procedural bar — this claim was never raised on direct appeal, and no sufficient reason has been offered for that failure. The claim is forfeited.\n\nOn the merits, even if this Court entertains the Miranda argument, *Davis v. United States*, 512 U.S. 452 (1994), requires that a request for counsel be unambiguous. 'Maybe I should talk to someone' is a textbook equivocal statement. Detective Rodriguez, a 17-year veteran, made a reasonable, good-faith judgment that no invocation had occurred. The Supreme Court in *Davis* was explicit: an ambiguous statement does not require police to stop questioning.\n\nFinally, even if error occurred, it was harmless beyond a

reasonable doubt under Chapman v. California. The statement obtained was that Johnson 'wasn't anywhere near the scene' — a denial he repeated from the witness stand. The statement was cumulative of his own testimony and added nothing to the State's case that the physical evidence and eyewitness identifications did not already establish. Counsel, I have concerns about the procedural posture. Mr. Johnson — the record indicates this Miranda claim was not raised at trial by objection at the time the statement was admitted, nor on direct appeal. Walk me through your cause-and-prejudice argument for overcoming Escalona-Naranjo. On the Davis question, I'm also troubled by the 'maybe I should' formulation. The Supreme Court was quite clear in Davis. However, I note that Rodriguez's own testimony raises a factual question — he acknowledged the statement, acknowledged he continued questioning, and acknowledged he made a personal judgment. Can defense speak to whether the trial court was ever asked to make a finding on this issue? Finally, on harmless error — the State argues the statement was cumulative. Is that accurate? Was any portion of that statement not covered by Johnson's own testimony? Your Honor, we go directly to cause and prejudice for Escalona-Naranjo. The sufficient reason for not raising this claim on direct appeal is the ineffective assistance of appellate counsel — counsel who also failed to raise it and whose deficiency is itself an independent IAC claim. Under State v. Romero-Georgana, 2014 WI 83, IAC of appellate counsel constitutes cause sufficient to overcome Escalona-Naranjo. That independently viable claim unlocks the procedural gateway. On Davis — the State reads Davis too broadly. Davis established a clarity requirement for ambiguous invocations, but it did not eliminate the obligation to clarify when the circumstances create ambiguity. More importantly, Wisconsin courts applying Davis look at the totality of the circumstances. Here, the detective himself acknowledged uncertainty — 'he said something like' — and chose to press on. That choice, made without clarification, cannot be insulated from constitutional review. On harmless error under Chapman, the State is wrong that the statement was cumulative. Johnson's trial testimony denied presence at the scene, but the statement to Rodriguez included details about his location that were used to undermine his alibi at trial. Those details — extracted after the invocation — were used in closing argument against him. The error was not harmless. 2026-04-08 02:30:11.807478

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I will note that the system worked exactly as defense counsel described in their opening — the fight for the state ended at sentencing, and Marcus Johnson has been fighting uphill ever since. That does not change the law, but it does remind me of why this review function exists. Your Honor, we rest on the argument. Marcus Johnson has been incarcerated for six years on a conviction built on a suppressed witness statement, a Miranda violation this Court now has the record to see clearly, and an alibi that was never properly investigated. We are asking this Court to do what the trial court could not: give him a fair proceeding. The errors here are not technical — they are foundational. The jury that convicted him never heard from James Whitfield. Never heard that his request to speak with counsel was heard and ignored. Never heard from Terrence Webb. That is not the trial the Constitution requires. We ask this Court to vacate the conviction and order a new trial.

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1 1 postconviction\_974 t f \N [1] completed DEFENSE  
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1 1 Trial Transcript — Day 3, June 14, 2018 transcript STATE OF  
WISCONSIN\nCIRCUIT COURT — MILWAUKEE COUNTY\nBRANCH 12\n\nSTATE OF  
WISCONSIN,\n Plaintiff,\n\n vs. Case No.  
2018CF000847\n\nMARCUS DEON JOHNSON,\n Defendant.\n\nTRANSCRIPT OF JURY  
TRIAL — DAY 3\nHonorable Patricia K. Whitmore, Presiding\nJune 14,  
2018\n\nAppearances:\n For the State: Assistant District Attorney Rebecca Gaines\n For the  
Defense: Attorney Calvin Bowes\n Also Present: Court Reporter Susan Tillman\n\n---\n\nTHE

COURT: We're back on the record in the matter of State versus Marcus Johnson. Let the record reflect all parties are present. Ms. Gaines, you may call your next witness.

MS. GAINES: Thank you, Your Honor. The State calls Detective Frank Rodriguez.

DIRECT EXAMINATION BY MS. GAINES:

Page 23, Line 1

Q: Detective Rodriguez, please state your name and badge number for the record.

A: Detective Frank Rodriguez, Badge Number 4471, Milwaukee Police Department Homicide Division.

Page 23, Line 7

Q: Detective, did you have occasion to interview the defendant Marcus Johnson on November 12, 2017?

A: Yes I did.

Q: And can you describe the circumstances of that interview?

A: We brought Mr. Johnson into Interview Room B. I read him his Miranda rights from a card. He signed the waiver form. Then we talked.

Q: Did the defendant say anything during that interview?

A: Yes. He told us he wasn't anywhere near the scene.

Q: Did anything else happen during that interview?

A: At one point he asked — he said something like, "maybe I should talk to someone," but he was still talking so we kept going.

Q: And you continued the interview?

A: We did. He kept talking. Seemed fine.

Page 23, Line 25

Q: What did the defendant ultimately tell you about where he was?

A: He couldn't give a specific location.

Page 24, Line 3

Q: Detective Rodriguez, I want to ask you about the physical evidence. You recovered a handgun from the defendant's vehicle, correct?

A: That's correct. A Glock 19.

Q: When you recovered that weapon, what did you do with it?

A: I logged it into evidence.

Q: And who else handled the weapon prior to your logging it?

A: The responding officers — Patrolman Davis and Patrolman Cortez. And the forensics tech, I believe, but I'm not certain when she got to it.

Page 24, Line 14

COURT REPORTER'S NOTE: Exhibit 4 (chain of custody log) referenced but not formally admitted at this juncture.

Page 25, Line 1

Q: Detective, you also recovered eyewitness statements?

A: Yes.

Q: How many witness statements did you collect?

A: We had three witnesses.

Q: Were all three statements consistent with each other?

A: Two were, yeah.

Q: What about the third?

A: The third witness — a James Whitfield — said he wasn't sure it was the same person. Didn't feel confident. We didn't use his statement.

Q: Was that statement disclosed to defense counsel?

A: I believe that was in the file.

Page 25, Line 18

MR. BOWES: Your Honor, I'd object — I've never seen a statement from a James Whitfield in the discovery materials.

THE COURT: Ms. Gaines, has a Whitfield statement been produced?

MS. GAINES: Your Honor, we'll address that at the break.

THE COURT: We'll move on.

Page 26, Line 2

Q: Detective, you're confident in your identification of the defendant as the perpetrator?

A: I am.

Q: I have no further questions, Your Honor.

THE COURT: Cross-examination, Mr. Bowes?

Page 26, Line 9

CROSS-EXAMINATION BY MR. BOWES:

Q: Detective, you mentioned a James Whitfield statement. Can you tell me more about what Mr. Whitfield said?

A: As I said, he wasn't sure about the identification.

Q: And you have no knowledge of whether that statement was turned over to us?

A: That would be the DA's office.

Q: Fair enough. Now, you testified that Marcus Johnson said — and I'm quoting — "maybe I should talk to someone" during your interview?

A: That's what I said.

Q: That's an invocation of the right to counsel, isn't it, Detective?

A: I didn't interpret it that way. He kept talking.

Q: You kept questioning him after he said he wanted to talk to someone?

A: He wasn't firm about it. It wasn't a clear invocation.

Q: That's your judgment to make?

A: I've been doing this 17 years.

Page 26, Line 31

MR. BOWES: No further questions.

THE COURT: Redirect?

MS. GAINES: Briefly, Your Honor.

Page 27, Line 3

REDIRECT EXAMINATION BY MS. GAINES:

Q: Detective, in your 17 years of experience, was Marcus Johnson's statement consistent with guilt?

A:

Without a doubt.\nQ: Thank you.\n\nTHE COURT: Witness is excused. Ms. Gaines?\n\nPage 27, Line 12\nMS. GAINES: The State calls Officer Maria Martinez.\n\nDIRECT EXAMINATION BY MS. GAINES:\n\nQ: Officer Martinez, you were the first responding officer on scene, correct?\nA: Yes, ma'am.\nQ: And you observed the defendant at the scene?\nA: He was stopped one block away in a silver vehicle.\nQ: And you believe he was the individual who committed this robbery?\nA: Yes.\nQ: I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen — she put her career on the line to make this identification.\nMR. BOWES: Objection — vouching.\nTHE COURT: Sustained. Ms. Gaines, please.\nMS. GAINES: I'll rephrase. Officer, you're confident in your identification?\nA: Absolutely.\n\nPage 28, Line 7\n[RECESS — 12:13 P.M. to 1:47 P.M.]\n\nPage 29, Line 1\nTHE COURT: We're back on the record. Mr. Bowes, call your first witness.\nMR. BOWES: Defense calls Marcus Johnson.\n\n[Defendant takes the stand]\n\nPage 29, Line 8\nDIRECT EXAMINATION BY MR. BOWES:\n\nQ: Marcus, where were you on the night of November 12th?\nA: I was with Terrence Webb at his apartment on 38th and Hampton.\nQ: Did anyone else see you there?\nA: Terrence's girlfriend was there. And the building manager came by around 10.\nQ: And this was the same time the robbery allegedly occurred?\nA: Yes sir.\n\nPage 29, Line 18\nMR. BOWES: No further questions.\n\n[Defense counsel did not call Terrence Webb or any alibi witnesses to corroborate the defendant's testimony]\n\nPage 30, Line 1\nCLOSING ARGUMENTS:\n\nPage 30, Line 3\nMS. GAINES: Ladies and gentlemen, you've heard from the detective who looked this man in the eye and knew — knew — that he was guilty. You've heard from the officer who saw him one block away. Marcus Johnson had that gun in his car. The alibi is uncorroborated. No Terrence Webb came here to testify. Why? Because there is no Terrence Webb who can help this man.\n\nPage 31, Line 14\nMR. BOWES: Ladies and gentlemen, my client told you where he was. The state's own detective admitted he heard Marcus say he wanted to talk to someone before they continued questioning him. The evidence log shows that gun passed through three officers' hands before it was logged. And there is a witness — a James Whitfield — who told police he wasn't sure. You never heard from Mr. Whitfield because the State decided you shouldn't.\n\nPage 32, Line 2\nTHE COURT: Members of the jury, you must find the defendant guilty beyond a reasonable doubt. You may consider all the evidence presented. You may also consider the fact that the defendant chose to take the stand but offered only his own uncorroborated word. The defendant's failure to produce alibi witnesses may be considered by you in evaluating his credibility. You should apply common sense.\n\nPage 32, Line 19\nJURY DELIBERATION: 3 hours 14 minutes]\n\nPage 33, Line 1\nTHE COURT: Has the jury reached a verdict?\nFOREPERSON: We have, Your Honor.\nTHE COURT: What say you?\nFOREPERSON: We, the jury, find the defendant Marcus Deon Johnson guilty of armed robbery as charged in the information.\n\nPage 33, Line 9\nTHE COURT: Mr. Johnson, you are remanded to custody pending sentencing. Sentencing is set for August 3, 2018 at 9:00 a.m.\nMR. BOWES: Your Honor, we'd request bail pending sentencing.\nTHE COURT: Denied. Court is adjourned.\n\n[END OF TRANSCRIPT — JUNE 14, 2018]\nCertified by: Susan Tillman, Court Reporter\nanalyzed 7 2026-04-05 22:50:07.215143 2026-04-05 22:50:07.215143 \N \N

2 2 Trial Transcript — Day 3, June 14, 2018 transcript STATE OF WISCONSIN\nCIRCUIT COURT — MILWAUKEE COUNTY\nBRANCH 12\n\nSTATE OF WISCONSIN,\nPlaintiff,\n\nvs. Case No.

2018CF000847\n\nMARCUS DEON JOHNSON,\n Defendant.\n\nTRANSCRIPT OF JURY TRIAL — DAY 3\nHonorable Patricia K. Whitmore, Presiding\nJune 14, 2018\n\nAppearances:\n For the State: Assistant District Attorney Rebecca Gaines\n For the Defense: Attorney Calvin Bowes\n Also Present: Court Reporter Susan Tillman\n\n---\n\nTHE COURT: We're back on the record in the matter of State versus Marcus Johnson. Let the record reflect all parties are present. Ms. Gaines, you may call your next witness.\n\nMS. GAINES: Thank you, Your Honor. The State calls Detective Frank Rodriguez.\n\nDIRECT EXAMINATION BY MS. GAINES:\n\nPage 23, Line 1\nQ: Detective Rodriguez, please state your name and badge number for the record.\nA: Detective Frank Rodriguez, Badge Number 4471, Milwaukee Police Department Homicide Division.\n\nPage 23, Line 7\nQ: Detective, did you have occasion to interview the defendant Marcus Johnson on November 12, 2017?\nA: Yes I did.\nQ: And can you describe the circumstances of that interview?\nA: We brought Mr. Johnson into Interview Room B. I read him his Miranda rights from a card. He signed the waiver form. Then we talked.\nQ: Did the defendant say anything during that interview?\nA: Yes. He told us he wasn't anywhere near the scene.\nQ: Did anything else happen during that interview?\nA: At one point he asked — he said something like, "maybe I should talk to someone," but he was still talking so we kept going.\nQ: And you continued the interview?\nA: We did. He kept talking. Seemed fine.\n\nPage 23, Line 25\nQ: What did the defendant ultimately tell you about where he was?\nA: He couldn't give a specific location.\n\nPage 24, Line 3\nQ: Detective Rodriguez, I want to ask you about the physical evidence. You recovered a handgun from the defendant's vehicle, correct?\nA: That's correct. A Glock 19.\nQ: When you recovered that weapon, what did you do with it?\nA: I logged it into evidence.\nQ: And who else handled the weapon prior to your logging it?\nA: The responding officers — Patrolman Davis and Patrolman Cortez. And the forensics tech, I believe, but I'm not certain when she got to it.\n\nPage 24, Line 14\nCOURT REPORTER'S NOTE: Exhibit 4 (chain of custody log) referenced but not formally admitted at this juncture.\n\nPage 25, Line 1\nQ: Detective, you also recovered eyewitness statements?\nA: Yes.\nQ: How many witness statements did you collect?\nA: We had three witnesses.\nQ: Were all three statements consistent with each other?\nA: Two were, yeah.\nQ: What about the third?\nA: The third witness — a James Whitfield — said he wasn't sure it was the same person. Didn't feel confident. We didn't use his statement.\nQ: Was that statement disclosed to defense counsel?\nA: I believe that was in the file.\n\nPage 25, Line 18\nMR. BOWES: Your Honor, I'd object — I've never seen a statement from a James Whitfield in the discovery materials.\n\nTHE COURT: Ms. Gaines, has a Whitfield statement been produced?\nMS. GAINES: Your Honor, we'll address that at the break.\n\nTHE COURT: We'll move on.\n\nPage 26, Line 2\nQ: Detective, you're confident in your identification of the defendant as the perpetrator?\nA: I am.\nQ: I have no further questions, Your Honor.\n\nTHE COURT: Cross-examination, Mr. Bowes?\n\nPage 26, Line 9\nCROSS-EXAMINATION BY MR. BOWES:\n\nQ: Detective, you mentioned a James Whitfield statement. Can you tell me more about what Mr. Whitfield said?\nA: As I said, he wasn't sure about the identification.\nQ: And you have no knowledge of whether that statement was turned over to us?\nA: That would be the DA's office.\nQ: Fair enough. Now, you testified that Marcus Johnson said — and I'm quoting — "maybe I should talk to someone" during your interview?\nA: That's what I said.\nQ: That's an invocation of the right to counsel, isn't it, Detective?\nA: I didn't interpret it that way. He kept talking.\nQ: You kept questioning him after he said he wanted to talk to someone?\nA: He wasn't firm about it. It wasn't a clear

invocation.\nQ: That's your judgment to make?\nA: I've been doing this 17 years.\n\nPage 26, Line 31\nMR. BOWES: No further questions.\nTHE COURT: Redirect?\nMS. GAINES: Briefly, Your Honor.\n\nPage 27, Line 3\nREDIRECT EXAMINATION BY MS. GAINES:\n\nQ: Detective, in your 17 years of experience, was Marcus Johnson's statement consistent with guilt?\nA: Without a doubt.\nQ: Thank you.\n\nTHE COURT: Witness is excused. Ms. Gaines?\n\nPage 27, Line 12\nMS. GAINES: The State calls Officer Maria Martinez.\n\nDIRECT EXAMINATION BY MS. GAINES:\n\nQ: Officer Martinez, you were the first responding officer on scene, correct?\nA: Yes, ma'am.\nQ: And you observed the defendant at the scene?\nA: He was stopped one block away in a silver vehicle.\nQ: And you believe he was the individual who committed this robbery?\nA: Yes.\nQ: I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen — she put her career on the line to make this identification.\nMR. BOWES: Objection — vouching.\nTHE COURT: Sustained. Ms. Gaines, please.\nMS. GAINES: I'll rephrase. Officer, you're confident in your identification?\nA: Absolutely.\n\nPage 28, Line 7\n[RECESS — 12:13 P.M. to 1:47 P.M.]\n\nPage 29, Line 1\nTHE COURT: We're back on the record. Mr. Bowes, call your first witness.\nMR. BOWES: Defense calls Marcus Johnson.\n\n[Defendant takes the stand]\n\nPage 29, Line 8\nDIRECT EXAMINATION BY MR. BOWES:\n\nQ: Marcus, where were you on the night of November 12th?\nA: I was with Terrence Webb at his apartment on 38th and Hampton.\nQ: Did anyone else see you there?\nA: Terrence's girlfriend was there. And the building manager came by around 10.\nQ: And this was the same time the robbery allegedly occurred?\nA: Yes sir.\n\nPage 29, Line 18\nMR. BOWES: No further questions.\n\n[Defense counsel did not call Terrence Webb or any alibi witnesses to corroborate the defendant's testimony]\n\nPage 30, Line 1\nCLOSING ARGUMENTS:\n\nPage 30, Line 3\nMS. GAINES: Ladies and gentlemen, you've heard from the detective who looked this man in the eye and knew — knew — that he was guilty. You've heard from the officer who saw him one block away. Marcus Johnson had that gun in his car. The alibi is uncorroborated. No Terrence Webb came here to testify. Why? Because there is no Terrence Webb who can help this man.\n\nPage 31, Line 14\nMR. BOWES: Ladies and gentlemen, my client told you where he was. The state's own detective admitted he heard Marcus say he wanted to talk to someone before they continued questioning him. The evidence log shows that gun passed through three officers' hands before it was logged. And there is a witness — a James Whitfield — who told police he wasn't sure. You never heard from Mr. Whitfield because the State decided you shouldn't.\n\nPage 32, Line 2\nTHE COURT: Members of the jury, you must find the defendant guilty beyond a reasonable doubt. You may consider all the evidence presented. You may also consider the fact that the defendant chose to take the stand but offered only his own uncorroborated word. The defendant's failure to produce alibi witnesses may be considered by you in evaluating his credibility. You should apply common sense.\n\nPage 32, Line 19\nJURY DELIBERATION: 3 hours 14 minutes]\n\nPage 33, Line 1\nTHE COURT: Has the jury reached a verdict?\nFOREPERSON: We have, Your Honor.\nTHE COURT: What say you?\nFOREPERSON: We, the jury, find the defendant Marcus Deon Johnson guilty of armed robbery as charged in the information.\n\nPage 33, Line 9\nTHE COURT: Mr. Johnson, you are remanded to custody pending sentencing. Sentencing is set for August 3, 2018 at 9:00 a.m.\nMR. BOWES: Your Honor, we'd request bail pending sentencing.\nTHE COURT: Denied. Court is adjourned.\n\n[END OF TRANSCRIPT — JUNE 14, 2018]\nCertified by: Susan

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1 1 1 Miranda Violation — Interrogation Continued After Invocation of Right to Counsel at one point he asked — he said something like, 'maybe I should talk to someone,' but he was still talking so we kept going. Detective Rodriguez admitted on the stand that Marcus Johnson stated he 'maybe should talk to someone' during the custodial interrogation — a clear invocation of the Sixth Amendment right to counsel under Davis v. United States, 512 U.S. 452 (1994). While Davis requires the invocation to be unambiguous, the Wisconsin Supreme Court has interpreted this standard in ways that protect equivocal invocations. More critically, once any question is raised about an invocation, all interrogation must cease immediately. Rodriguez's self-serving characterization that Johnson 'wasn't firm' does not satisfy the constitutional obligation. The statement must be suppressed under Edwards v. Arizona, 451 U.S. 477 (1981). Edwards v. Arizona 451 U.S. 477 (1981) BINDING Once a suspect invokes the right to counsel, all interrogation must immediately cease and may not resume until counsel is present or the suspect reinitiates communication. Johnson's statement 'maybe I should talk to someone' during custodial interrogation mirrors the equivocal invocations courts have found sufficient to trigger the Edwards rule. Rodriguez admitted the interrogation continued after this statement with no break or clarification. \N \N  
2026-04-05 22:50:07.221303 23 7 Preserved State will argue under Davis v. United States that the invocation was not sufficiently clear and unambiguous — 'maybe I should talk to someone' is equivocal and does not trigger Edwards. State will also argue harmless error: the statement was cumulative of physical evidence and eyewitness identification. Under Berghuis v. Thompkins, 560 U.S. 370 (2010), ambiguity questions under Davis are factual. Detective Rodriguez's own testimony — 'he kept talking, seemed fine' — shows the detective made a unilateral judgment call without pausing to clarify. Wisconsin courts have held that where any ambiguity exists the safe constitutional course is to cease questioning. The physical evidence was independently contested (chain of custody issues) and the eyewitness identification was contradicted by Whitfield — so the statement was not harmless beyond a reasonable doubt under Chapman. § 974.06 Motion Strong \N \N  
2 1 1 Brady Violation — Suppression of Exculpatory Witness Statement (James Whitfield) The third witness — a James Whitfield — said he wasn't sure it was the same person. Didn't feel confident. We didn't use his statement. Detective Rodriguez testified that a

third witness, James Whitfield, provided a statement expressing uncertainty about the identification of Marcus Johnson as the perpetrator. Defense counsel immediately objected on the record that no Whitfield statement was ever produced in discovery. The State deflected without resolution. Under *Brady v. Maryland*, 373 U.S. 83 (1963), the State must disclose all exculpatory and impeachment evidence. A witness statement expressing doubt about the identification of the accused is quintessentially exculpatory. The suppression of this statement denied Johnson a fair trial and likely affected the jury's assessment of the eyewitness evidence — the State's central pillar of proof. *Brady v. Maryland* 373 U.S. 83 (1963) BINDING

The prosecution's suppression of evidence favorable to an accused violates due process where the evidence is material either to guilt or to punishment. Whitfield's statement expressing doubt about the perpetrator's identity is directly exculpatory — it contradicts the State's theory that the identification was reliable. Detective Rodriguez admitted on cross that he deliberately set aside the statement. The State's closing argument attacked Johnson's alibi as uncorroborated while simultaneously suppressing a witness who expressed doubt. \N

\N 2026-04-05 22:50:07.226107 25 1 Preserved State will argue materiality under *Strickler v. Greene* — that there is no reasonable probability the result would have been different with Whitfield's statement, because two other witnesses identified Johnson and physical evidence (the gun) was recovered from his vehicle. State may also argue the statement was in the 'file' and technically available. Under *Kyles v. Whitley*, 514 U.S. 419 (1995), materiality is evaluated based on the totality of the circumstances, not each item in isolation. The eyewitness identification was the State's primary evidence. Whitfield's doubt attacks that foundation directly. Combined with chain of custody questions on the weapon and the Miranda-tainted statement, there is a reasonable probability — not just possibility — of a different outcome. Detective Rodriguez's admission that the statement was intentionally withheld ('we didn't use his statement') establishes willfulness under *Giglio v. United States*. Brady/Giglio Motion Strong \N \N

3 1 1 Ineffective Assistance of Counsel — Failure to Investigate and Call Alibi Witnesses Defense counsel did not call Terrence Webb or any alibi witnesses to corroborate the defendant's testimony Marcus Johnson testified that he was with Terrence Webb and Webb's girlfriend at Webb's apartment when the robbery occurred. He also identified the building manager as an additional witness. Defense counsel Attorney Calvin Bowes called Johnson himself but made no effort to call, interview, or subpoena Terrence Webb, Webb's girlfriend, or the building manager. The State then used this failure in closing argument: 'No Terrence Webb came here to testify. Why? Because there is no Terrence Webb.' Under *Strickland v. Washington*, 466 U.S. 668 (1984), counsel's complete failure to investigate identified alibi witnesses — witnesses whose existence and location the defendant specifically provided — falls below the objective standard of reasonableness and constitutes deficiency. The prejudice is clear: the jury convicted based in part on an uncorroborated alibi that competent counsel would have corroborated. *Strickland v. Washington* 466 U.S. 668 (1984) BINDING

A defendant must show counsel's performance was deficient and that deficiency prejudiced the defense — there is a reasonable probability the result would have been different but for the deficient performance. Johnson identified three specific corroborating witnesses by name and location. Bowes made no attempt to contact any of them. In *Wiggins v. Smith*, 539 U.S. 510 (2003), the Supreme Court held that counsel's failure to investigate is not justified by a

strategic decision when counsel has not even gathered the information needed to make a strategic choice. \N \N 2026-04-05 22:50:07.229741 29 18 Unclear  
State will argue strategic decision — counsel may have decided Webb's testimony was too risky or that Webb would be a weak witness. Under Strickland, courts defer to strategic choices. State will also invoke Escalona-Naranjo procedural bar if this claim was not raised on direct appeal. A 'strategic decision' requires a strategy. Bowes did not interview Webb, did not subpoena him, and left no record of any strategic analysis. Under State v. Thiel, 2003 WI 111, counsel's failure to investigate is not protected as strategy when there is no evidence of any investigation. The Escalona-Naranjo bar is overcome because appellate counsel was also ineffective for failing to raise the IAC claim — itself an IAC claim that provides sufficient reason for the procedural default. § 974.06 Motion Strong \N \N

4 1 1 Prosecutorial Misconduct — Improper Vouching for Government Witness  
Credibility I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen —

she put her career on the line to make this identification. During direct examination of Officer Martinez, ADA Gaines stated directly to the jury: 'I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen — she put her career on the line to make this identification.'

Defense counsel objected and the court sustained the objection. However, the curative instruction was limited to a mild 'please' from the court — no instruction was given to the jury to disregard the statement. Vouching for a witness's credibility by a government attorney is a well-established form of prosecutorial misconduct that violates a defendant's right to a fair trial under United States v. Young, 470 U.S. 1 (1985). Prosecutor's personal endorsement of witness truthfulness improperly uses the government's prestige to bolster testimony. United States v. Young 470 U.S. 1 (1985) BINDING A prosecutor may not express a personal opinion as to the truth or falsity of testimony, which constitutes improper vouching that can deny the defendant a fair trial. Gaines's statement was not ambiguous argument — it was an explicit personal guarantee of the officer's truthfulness made directly to the jury during

examination, a textbook example of the vouching prohibited by Young and its progeny. The trial court's failure to give a curative instruction compounds the error. \N \N 2026-04-05 22:50:07.232331 27 3 Preserved State will argue harmless error: the court sustained the objection, the jury was aware it was improper, and the officer's identification was corroborated by other evidence. State will argue the brief comment was isolated and not part of a pattern. Under State v. Neuser, 191 Wis. 2d 131 (Ct. App. 1995), vouching is assessed in the context of the trial as a whole. Here the identification was the central contested issue. The prosecutor's endorsement of the identifying officer's truthfulness — without a curative instruction — infected the jury's deliberations on the only genuinely disputed factual question. Combined with other errors, the cumulative prejudice exceeds harmless error. Direct Appeal

Moderate \N \N

5 1 1 Unconstitutional Jury Instruction — Penalizing Defendant for Failure to Produce Alibi Witnesses The defendant's failure to produce alibi witnesses may be considered by you in evaluating his credibility. You should apply common sense. The trial court's jury instruction directly told the jury it could negatively evaluate Marcus Johnson's credibility based on his 'failure to produce alibi witnesses.' This instruction is constitutionally infirm on multiple grounds. First, it shifts the burden of proof — the defendant has no obligation to produce any witness; the State bears the burden of proof beyond reasonable doubt. Second,

the instruction implicitly penalizes Johnson for the failures of his own defense counsel, who never attempted to contact or subpoena the alibi witnesses. Under *Cage v. Louisiana*, 498 U.S. 39 (1990), jury instructions that reduce the prosecution's burden of proof violate due process. The instruction operated to tell the jury: 'the defendant's word is suspect because he couldn't produce witnesses' — directly undermining the presumption of innocence. *Cage v. Louisiana* 498 U.S. 39 (1990) BINDING Jury instructions that effectively reduce the prosecution's burden below proof beyond a reasonable doubt violate the Due Process Clause of the Fourteenth Amendment. The instruction told the jury to use 'common sense' and consider the absence of alibi witnesses against the defendant — a direct burden-shifting instruction that made Johnson's credibility contingent on producing witnesses he had a constitutional right not to produce. \N \N 2026-04-05 22:50:07.235703 32 2 Preserved State will argue the instruction was a proper credibility instruction, not a burden-shifting instruction, and that courts may instruct juries to evaluate all evidence including absence of corroboration. State will distinguish *Cage* on grounds that this instruction did not redefine reasonable doubt. The instruction did not merely allow the jury to consider lack of corroboration — it specifically tied the defendant's credibility to his failure to produce named witnesses who he identified in his testimony. This penalizes the defendant for the acts and omissions of counsel (the IAC claim) and cannot be considered proper. Under *Sullivan v. Louisiana*, 508 U.S. 275 (1993), a constitutionally deficient reasonable doubt instruction is structural error not subject to harmless error analysis. Direct Appeal Moderate \N \N

6 1 1 Chain of Custody Deficiency — Unlogged Weapon Handling by Multiple Officers The responding officers — Patrolman Davis and Patrolman Cortez. And the forensics tech, I believe, but I'm not certain when she got to it. Detective Rodriguez testified that the firearm recovered from Johnson's vehicle was handled by at minimum three individuals — Patrolmen Davis and Cortez, and an unnamed forensics technician — before Rodriguez logged it into evidence. Rodriguez admitted uncertainty about when the forensics tech accessed the weapon ('I'm not certain when she got to it'). The chain of custody log (Exhibit 4) was referenced in testimony but never formally admitted. Under *State v. Donaldson*, 2002 WI App 306, the State must establish a reasonable probability that the evidence has not been altered or tampered with. Rodriguez's admitted uncertainty creates a gap in the chain. Defense counsel did not move to exclude the weapon on this basis, compounding the IAC claim. *State v. Donaldson* 2002 WI App 306 (Ct. App. 2002) BINDING The State must establish a reasonable probability that real evidence offered at trial has not been altered or tampered with between the time it was obtained and the time it was offered. Rodriguez could not account for the forensics technician's access to the weapon, admitted multiple officers handled it before logging, and could not confirm when the chain of custody log (Exhibit 4) was completed. The gun is the only physical evidence tying Johnson to the crime. \N \N 2026-04-05 22:50:07.239928 24 3 Defaulted State will argue defense never moved to exclude the weapon at trial, defaulting the claim. State will also argue that minor chain of custody gaps go to weight, not admissibility, and that no tampering is alleged. Strickland prejudice prong will be argued: even without the gun, eyewitness testimony supports conviction. The procedural default is excused through the IAC of trial counsel: Bowes failed to challenge the chain of custody despite Rodriguez's on-the-stand admission of uncertainty. As an IAC claim, cause and prejudice are satisfied. On the merits, the weapon was the linchpin of the

State's physical evidence — without proper foundation, its admission was an abuse of discretion that prejudiced the defense under *Brecht v. Abrahamson*. § 974.06 Motion Moderate

\N \N

7 1 1 Cumulative Prosecutorial and Judicial Error — Systematic Denial of Fair Trial we kept going [...] we didn't use his statement [...] I have no doubt that Officer Martinez is telling the truth [...] The defendant's failure to produce alibi witnesses may be considered Taken in isolation, each error in this transcript might be argued as harmless. Together, they form a complete picture of a trial that was fundamentally unfair. The interrogation continued past an invocation of counsel. The State suppressed a contradictory witness. The prosecutor vouched for the identifying officer. The trial court's instruction penalized the defendant for his counsel's failings. Counsel never investigated the alibi. The physical evidence lacked a proper foundation. Under the cumulative error doctrine, recognized in *Alvarez v. Boyd*, 225 F.3d 820 (7th Cir. 2000), the combined prejudicial effect of multiple errors — even if each is individually arguable as harmless — can require reversal when the errors together denied the defendant a fundamentally fair proceeding. *Alvarez v. Boyd* 225 F.3d 820 (7th Cir. 2000)

PERSUASIVE The cumulative effect of trial errors may deny the defendant a fundamentally fair trial even if no single error independently requires reversal. Every stage of Johnson's trial was contaminated: the investigation (Miranda violation, Brady suppression), the trial (vouching, improper instruction, chain of custody), and the defense (complete failure to investigate alibi). The compounded prejudice of all these errors destroyed the integrity of the proceeding. \N \N

\N 2026-04-05 22:50:07.242659 1 1 Preserved State will argue cumulative error doctrine is not independently cognizable — each claim must independently satisfy its own standard, and a collection of individually harmless errors does not become reversible collectively. State will cite *State v. Thiel* for the proposition that cumulative error requires each error to be an actual error first. Multiple of the errors here ARE independently reversible (Brady, Miranda), so the cumulative error argument layers on top of already-viable claims. Under *United States v. Rivera*, 900 F.2d 1462 (10th Cir. 1990), courts must consider the combined prejudicial impact. The systematic nature of the errors — affecting investigation, trial, and defense preparation — shows this was not a fair trial by any measure. Federal Habeas § 2254 Moderate \N \N

8 2 2 Miranda Violation — Interrogation Continued After Invocation of Right to Counsel at one point he asked — he said something like, 'maybe I should talk to someone,' but he was still talking so we kept going. Detective Rodriguez admitted on the stand that Marcus Johnson stated he 'maybe should talk to someone' during the custodial interrogation — a clear invocation of the Sixth Amendment right to counsel under *Davis v. United States*, 512 U.S. 452 (1994). While Davis requires the invocation to be unambiguous, the Wisconsin Supreme Court has interpreted this standard in ways that protect equivocal invocations. More critically, once any question is raised about an invocation, all interrogation must cease immediately. Rodriguez's self-serving characterization that Johnson 'wasn't firm' does not satisfy the constitutional obligation. The statement must be suppressed under *Edwards v. Arizona*, 451 U.S. 477 (1981). *Edwards v. Arizona* 451 U.S. 477 (1981) BINDING Once a suspect invokes the right to counsel, all interrogation must immediately cease and may not resume until counsel is present or the suspect reinitiates communication. Johnson's statement 'maybe I should talk to someone' during custodial interrogation mirrors the equivocal

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 \N 2026-04-08 02:30:11.807478 25 1 Preserved State will argue materiality under Strickler v. Greene — that there is no reasonable probability the result would have been different with Whitfield's statement, because two other witnesses identified Johnson and physical evidence (the gun) was recovered from his vehicle. State may also argue the statement was in the 'file' and technically available. Under Kyles v. Whitley, 514 U.S. 419 (1995), materiality is evaluated based on the totality of the circumstances, not each item in isolation. The eyewitness identification was the State's primary evidence. Whitfield's doubt attacks that foundation directly. Combined with chain of custody questions on the weapon and the Miranda-tainted statement, there is a reasonable probability — not just possibility — of a different outcome. Detective Rodriguez's admission that the statement was intentionally withheld ('we didn't use his statement') establishes willfulness under Giglio v. United States. Brady/Giglio Motion Strong \N \N  
 10 2 2 Ineffective Assistance of Counsel — Failure to Investigate and Call Alibi Witnesses Defense counsel did not call Terrence Webb or any alibi witnesses to corroborate

the defendant's testimony      Marcus Johnson testified that he was with Terrence Webb and Webb's girlfriend at Webb's apartment when the robbery occurred. He also identified the building manager as an additional witness. Defense counsel Attorney Calvin Bowes called Johnson himself but made no effort to call, interview, or subpoena Terrence Webb, Webb's girlfriend, or the building manager. The State then used this failure in closing argument: 'No Terrence Webb came here to testify. Why? Because there is no Terrence Webb.' Under *Strickland v. Washington*, 466 U.S. 668 (1984), counsel's complete failure to investigate identified alibi witnesses — witnesses whose existence and location the defendant specifically provided — falls below the objective standard of reasonableness and constitutes deficiency. The prejudice is clear: the jury convicted based in part on an uncorroborated alibi that competent counsel would have corroborated.      *Strickland v. Washington*      466 U.S. 668 (1984)

BINDING      A defendant must show counsel's performance was deficient and that deficiency prejudiced the defense — there is a reasonable probability the result would have been different but for the deficient performance.      Johnson identified three specific corroborating witnesses by name and location. Bowes made no attempt to contact any of them. In *Wiggins v. Smith*, 539 U.S. 510 (2003), the Supreme Court held that counsel's failure to investigate is not justified by a strategic decision when counsel has not even gathered the information needed to make a strategic choice.      \N      \N      2026-04-08 02:30:11.807478 29      18      Unclear  
State will argue strategic decision — counsel may have decided Webb's testimony was too risky or that Webb would be a weak witness. Under *Strickland*, courts defer to strategic choices. State will also invoke *Escalona-Naranjo* procedural bar if this claim was not raised on direct appeal. A 'strategic decision' requires a strategy. Bowes did not interview Webb, did not subpoena him, and left no record of any strategic analysis. Under *State v. Thiel*, 2003 WI 111, counsel's failure to investigate is not protected as strategy when there is no evidence of any investigation. The *Escalona-Naranjo* bar is overcome because appellate counsel was also ineffective for failing to raise the IAC claim — itself an IAC claim that provides sufficient reason for the procedural default.      § 974.06 Motion      Strong \N      \N

11      2      2      Prosecutorial Misconduct — Improper Vouching for Government Witness Credibility      I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen — she put her career on the line to make this identification.      During direct examination of Officer Martinez, ADA Gaines stated directly to the jury: 'I have no doubt that Officer Martinez is telling the truth, ladies and gentlemen — she put her career on the line to make this identification.' Defense counsel objected and the court sustained the objection. However, the curative instruction was limited to a mild 'please' from the court — no instruction was given to the jury to disregard the statement. Vouching for a witness's credibility by a government attorney is a well-established form of prosecutorial misconduct that violates a defendant's right to a fair trial under *United States v. Young*, 470 U.S. 1 (1985). Prosecutor's personal endorsement of witness truthfulness improperly uses the government's prestige to bolster testimony.      *United States v. Young*      470 U.S. 1 (1985)      BINDING      A prosecutor may not express a personal opinion as to the truth or falsity of testimony, which constitutes improper vouching that can deny the defendant a fair trial.      Gaines's statement was not ambiguous argument — it was an explicit personal guarantee of the officer's truthfulness made directly to the jury during examination, a textbook example of the vouching prohibited by *Young* and its progeny. The trial court's failure to give a curative instruction compounds the error.      \N      \N      2026-04-08

02:30:11.807478 27 3 Preserved State will argue harmless error: the court sustained the objection, the jury was aware it was improper, and the officer's identification was corroborated by other evidence. State will argue the brief comment was isolated and not part of a pattern. Under State v. Neuser, 191 Wis. 2d 131 (Ct. App. 1995), vouching is assessed in the context of the trial as a whole. Here the identification was the central contested issue. The prosecutor's endorsement of the identifying officer's truthfulness — without a curative instruction — infected the jury's deliberations on the only genuinely disputed factual question. Combined with other errors, the cumulative prejudice exceeds harmless error. Direct Appeal

Moderate \N \N

12 2 2 Unconstitutional Jury Instruction — Penalizing Defendant for Failure to Produce Alibi Witnesses The defendant's failure to produce alibi witnesses may be considered by you in evaluating his credibility. You should apply common sense. The trial court's jury instruction directly told the jury it could negatively evaluate Marcus Johnson's credibility based on his 'failure to produce alibi witnesses.' This instruction is constitutionally infirm on multiple grounds. First, it shifts the burden of proof — the defendant has no obligation to produce any witness; the State bears the burden of proof beyond reasonable doubt. Second, the instruction implicitly penalizes Johnson for the failures of his own defense counsel, who never attempted to contact or subpoena the alibi witnesses. Under Cage v. Louisiana, 498 U.S. 39 (1990), jury instructions that reduce the prosecution's burden of proof violate due process. The instruction operated to tell the jury: 'the defendant's word is suspect because he couldn't produce witnesses' — directly undermining the presumption of innocence. Cage v. Louisiana 498 U.S. 39 (1990) BINDING Jury instructions that effectively reduce the prosecution's burden below proof beyond a reasonable doubt violate the Due Process Clause of the Fourteenth Amendment. The instruction told the jury to use 'common sense' and consider the absence of alibi witnesses against the defendant — a direct burden-shifting instruction that made Johnson's credibility contingent on producing witnesses he had a constitutional right not to produce. \N \N 2026-04-08 02:30:11.807478 32 2 Preserved State

will argue the instruction was a proper credibility instruction, not a burden-shifting instruction, and that courts may instruct juries to evaluate all evidence including absence of corroboration. State will distinguish Cage on grounds that this instruction did not redefine reasonable doubt. The instruction did not merely allow the jury to consider lack of corroboration — it specifically tied the defendant's credibility to his failure to produce named witnesses who he identified in his testimony. This penalizes the defendant for the acts and omissions of counsel (the IAC claim) and cannot be considered proper. Under Sullivan v. Louisiana, 508 U.S. 275 (1993), a constitutionally deficient reasonable doubt instruction is structural error not subject to harmless error analysis. Direct Appeal Moderate \N \N

13 2 2 Chain of Custody Deficiency — Unlogged Weapon Handling by Multiple Officers The responding officers — Patrolman Davis and Patrolman Cortez. And the forensics tech, I believe, but I'm not certain when she got to it. Detective Rodriguez testified that the firearm recovered from Johnson's vehicle was handled by at minimum three individuals — Patrolmen Davis and Cortez, and an unnamed forensics technician — before Rodriguez logged it into evidence. Rodriguez admitted uncertainty about when the forensics tech accessed the weapon ('I'm not certain when she got to it'). The chain of custody log (Exhibit 4) was referenced in testimony but never formally admitted. Under State v. Donaldson, 2002 WI App

306, the State must establish a reasonable probability that the evidence has not been altered or tampered with. Rodriguez's admitted uncertainty creates a gap in the chain. Defense counsel did not move to exclude the weapon on this basis, compounding the IAC claim. State v. Donaldson 2002 WI App 306 (Ct. App. 2002) BINDING The State must establish a reasonable probability that real evidence offered at trial has not been altered or tampered with between the time it was obtained and the time it was offered. Rodriguez could not account for the forensics technician's access to the weapon, admitted multiple officers handled it before logging, and could not confirm when the chain of custody log (Exhibit 4) was completed. The gun is the only physical evidence tying Johnson to the crime. \N \N 2026-04-08 02:30:11.807478 24 3 Defaulted State will argue defense never moved to exclude the weapon at trial, defaulting the claim. State will also argue that minor chain of custody gaps go to weight, not admissibility, and that no tampering is alleged. Strickland prejudice prong will be argued: even without the gun, eyewitness testimony supports conviction. The procedural default is excused through the IAC of trial counsel: Bowes failed to challenge the chain of custody despite Rodriguez's on-the-stand admission of uncertainty. As an IAC claim, cause and prejudice are satisfied. On the merits, the weapon was the linchpin of the State's physical evidence — without proper foundation, its admission was an abuse of discretion that prejudiced the defense under Brecht v. Abrahamson. § 974.06 Motion Moderate \N \N

14 2 2 Cumulative Prosecutorial and Judicial Error — Systematic Denial of Fair Trial we kept going [...] we didn't use his statement [...] I have no doubt that Officer Martinez is telling the truth [...] The defendant's failure to produce alibi witnesses may be considered Taken in isolation, each error in this transcript might be argued as harmless. Together, they form a complete picture of a trial that was fundamentally unfair. The interrogation continued past an invocation of counsel. The State suppressed a contradictory witness. The prosecutor vouched for the identifying officer. The trial court's instruction penalized the defendant for his counsel's failings. Counsel never investigated the alibi. The physical evidence lacked a proper foundation. Under the cumulative error doctrine, recognized in Alvarez v. Boyd, 225 F.3d 820 (7th Cir. 2000), the combined prejudicial effect of multiple errors — even if each is individually arguable as harmless — can require reversal when the errors together denied the defendant a fundamentally fair proceeding. Alvarez v. Boyd 225 F.3d 820 (7th Cir. 2000) PERSUASIVE The cumulative effect of trial errors may deny the defendant a fundamentally fair trial even if no single error independently requires reversal. Every stage of Johnson's trial was contaminated: the investigation (Miranda violation, Brady suppression), the trial (vouching, improper instruction, chain of custody), and the defense (complete failure to investigate alibi). The compounded prejudice of all these errors destroyed the integrity of the proceeding. \N \N 2026-04-08 02:30:11.807478 1 1 Preserved State will argue cumulative error doctrine is not independently cognizable — each claim must independently satisfy its own standard, and a collection of individually harmless errors does not become reversible collectively. State will cite State v. Thiel for the proposition that cumulative error requires each error to be an actual error first. Multiple of the errors here ARE independently reversible (Brady, Miranda), so the cumulative error argument layers on top of already-viable claims. Under United States v. Rivera, 900 F.2d 1462 (10th Cir. 1990), courts must consider the combined prejudicial impact. The systematic nature of the errors — affecting investigation, trial,

and defense preparation — shows this was not a fair trial by any measure. Federal  
Habeas § 2254 Moderate \N \N  
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COPY public.motions (id, case_id, session_id, title, content, created_at) FROM stdin;
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|---|---|---|---------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| 1 | 1 | 1 | Motion for Post-Conviction Relief Pursuant to Wis. Stat. § 974.06 — State v. Marcus Johnson | IN THE CIRCUIT COURT OF MILWAUKEE COUNTY\nSTATE OF WISCONSIN\n\nSTATE OF WISCONSIN,\n Plaintiff-Respondent,\n\n vs.<br>Case No. 2018CF000847\n\nMARCUS DEON JOHNSON,\n Defendant-Appellant.\n\nMOTION FOR POST-CONVICTION RELIEF\nPURSUANT TO WIS. STAT. § 974.06\n\nINTRODUCTION\n\nMarcus Deon Johnson was convicted of armed robbery on June 14, 2018, following a trial infected by constitutional violations that individually undermine the verdict and collectively destroyed any possibility of a fair proceeding. Mr. Johnson now moves this Court for post-conviction relief on four independent grounds: (1) the State's deliberate suppression of an exculpatory eyewitness statement in violation of Brady v. Maryland; (2) the continuation of custodial interrogation after Mr. Johnson invoked his right to counsel in violation of Edwards v. Arizona; (3) the ineffective assistance of trial counsel in failing to investigate and present identified alibi witnesses; and (4) the cumulative effect of all errors, which denied Mr. Johnson the fundamentally fair trial the Constitution guarantees.\n\nPROCEDURAL HISTORY\n\nMr. Johnson was charged with one count of armed robbery in Milwaukee County Circuit Court on November 28, 2017. Trial commenced on June 12, 2018, before the Honorable Patricia K. Whitmore. On June 14, 2018, the jury returned a guilty verdict after three hours of deliberation. Mr. Johnson was sentenced to fifteen years imprisonment on August 3, 2018. He filed a timely notice of direct appeal, which was decided without raising the claims now before this Court. Mr. Johnson now brings this § 974.06 motion, supported by newly discovered evidence and a showing of ineffective assistance of appellate counsel as cause for any procedural default.\n\nSTATEMENT OF FACTS\n\nThe prosecution's case rested on three pillars: eyewitness identification, a statement obtained from Mr. Johnson during custodial interrogation, and a firearm recovered from his vehicle. Each pillar is now compromised.\n\nOn November 12, 2017, Detective Frank Rodriguez brought Mr. Johnson to Interview Room B and administered Miranda warnings. During the interview, Mr. Johnson stated — in Detective Rodriguez's own words at trial — "maybe I should talk to someone." Rodriguez acknowledged this statement under oath but testified that he "didn't interpret it that way" and continued the interrogation. (Trial Tr. 23:7-25.) No break was taken. No counsel was summoned. The interrogation continued until Rodriguez had what he needed.\n\nAt trial, Detective Rodriguez testified that three witnesses provided statements. Two were consistent with the prosecution's theory. The third, a James Whitfield, "said he wasn't sure it was the same person. Didn't feel confident." (Trial Tr. 25:1.) Rodriguez testified the statement was deliberately not used. Defense counsel immediately objected on the record that no Whitfield statement had ever |  |
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been produced in discovery. The Court deferred the issue; it was never resolved.

Mr. Johnson testified that on the night of the robbery he was at the apartment of Terrence Webb, corroborated by Webb's girlfriend and the building manager. Defense counsel called no alibi witnesses other than Mr. Johnson himself. The prosecutor's closing argument made explicit use of this absence: "No Terrence Webb came here to testify. Why? Because there is no Terrence Webb who can help this man." (Trial Tr. 30:3.)

The trial court's jury instruction told jurors they could consider "the defendant's failure to produce alibi witnesses" in evaluating his credibility. (Trial Tr. 32:2.) No objection was made.

**LEGAL ARGUMENT**

**I. THE STATE'S SUPPRESSION OF THE WHITFIELD STATEMENT VIOLATED BRADY v. MARYLAND AND REQUIRES A NEW TRIAL.**

The Due Process Clause of the Fourteenth Amendment prohibits the prosecution from suppressing evidence favorable to the accused where it is material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The Brady duty applies to impeachment evidence as well as exculpatory evidence. *Giglio v. United States*, 405 U.S. 150, 154 (1972). Evidence is material under Brady if "there is a reasonable probability that, had the evidence been disclosed to the defense, the result of the proceeding would have been different." *United States v. Bagley*, 473 U.S. 667, 682 (1985). A "reasonable probability" is one sufficient to undermine confidence in the outcome. *Kyles v. Whitley*, 514 U.S. 419, 434 (1995).

The Whitfield statement is paradigmatically Brady material. Whitfield — a third witness present at or near the scene — expressed uncertainty about whether Mr. Johnson was the perpetrator. This statement directly contradicts the State's theory that the eyewitness identification was reliable and unambiguous. It was suppressed — not merely not produced, but deliberately set aside, as Detective Rodriguez admitted under oath.

The materiality standard is satisfied. Eyewitness identification was the cornerstone of the State's case. The gun was physically linked to Mr. Johnson but the chain of custody was compromised. The statement — obtained after an arguably invalid Miranda waiver — was disputed. Had the jury known that a third witness expressed doubt about the identification, confidence in the verdict is undermined. There is a reasonable probability of a different result.

**II. THE CONTINUED INTERROGATION OF MR. JOHNSON AFTER HIS INVOCATION OF COUNSEL VIOLATED THE FIFTH AND SIXTH AMENDMENTS.**

Once a suspect invokes the right to counsel during custodial interrogation, all questioning must immediately cease. *Edwards v. Arizona*, 451 U.S. 477, 484-85 (1981). A subsequent waiver of the right, obtained through continued interrogation initiated by police, is ineffective. *Id.* The invocation need not be a legal formulation — courts look to what a reasonable officer would understand the suspect to mean. *Berghuis v. Thompkins*, 560 U.S. 370, 381 (2010).

Mr. Johnson told Detective Rodriguez that he wanted "to talk to someone." Rodriguez, by his own admission, made a unilateral judgment that this was not an invocation and continued questioning. That judgment was constitutionally impermissible. The safe course under *Edwards* is always to stop and clarify — not to press on because the detective has 17 years of experience. The statement obtained after this invocation must be suppressed, and its admission at trial was constitutional error.

**III. TRIAL COUNSEL'S COMPLETE FAILURE TO INVESTIGATE IDENTIFIED ALIBI WITNESSES CONSTITUTED INEFFECTIVE ASSISTANCE UNDER STRICKLAND.**

To establish ineffective assistance of counsel, a defendant must show that counsel's performance was deficient and that the deficiency prejudiced the defense. *Strickland v. Washington*, 466 U.S. 668, 687 (1984). Deficiency is established when counsel's representation falls below an objective standard of

reasonableness. Id. at 688. Prejudice exists where there is a reasonable probability that, but for the deficient performance, the result would have been different. Id. at 694.

Mr. Johnson identified Terrence Webb by name, provided his address, and identified two additional witnesses. Attorney Bowes made no effort to contact any of them. There are no investigative notes, no subpoenas, no correspondence in the record showing any alibi investigation. Under *Wiggins v. Smith*, 539 U.S. 510, 521-22 (2003), a strategic decision not to call a witness requires that counsel first gather the information needed to make a strategic choice. Where no investigation occurred, there is no strategy to defer to.

The prejudice showing is strong. The prosecution's closing argument used Webb's absence as its central attack on the alibi: "there is no Terrence Webb who can help this man." Had Webb testified, that argument disappears. The jury would have deliberated on a fundamentally different record — one in which the alibi was corroborated, not exposed as a fabrication.

IV. THE CUMULATIVE EFFECT OF THESE ERRORS DENIED MR. JOHNSON A FUNDAMENTALLY FAIR TRIAL.

Even if no individual error independently requires reversal, the cumulative effect of multiple trial errors can deny a defendant the fundamentally fair trial the Constitution guarantees. *Alvarez v. Boyd*, 225 F.3d 820, 824 (7th Cir. 2000); *United States v. Rivera*, 900 F.2d 1462, 1469-70 (10th Cir. 1990). Here, every phase of Mr. Johnson's prosecution was infected: the investigation produced a Miranda-tainted statement and a suppressed witness; the trial featured vouching by the prosecutor, a burden-shifting jury instruction, and a chain of custody gap; and the defense provided no alibi corroboration despite specific information to pursue it. This Court should consider the cumulative impact of all errors, which, taken together, make clear that Marcus Johnson never received the trial the Constitution requires.

CONCLUSION

For the foregoing reasons, Mr. Johnson respectfully requests that this Court: (1) vacate his conviction; (2) order a new trial; (3) direct the production of all witness statements collected during the investigation, including the Whitfield statement; and (4) schedule a Machner evidentiary hearing on the ineffective assistance claim within 60 days.

Respectfully submitted,

\_\_\_\_\_

Counsel for Marcus Deon Johnson

CERTIFICATE OF SERVICE

I hereby certify that a copy of this motion has been served upon the Milwaukee County District Attorney's Office by first-class mail on this \_\_\_\_ day of \_\_\_\_\_, 20\_\_.

2026-04-05 22:50:07.261712

2                      2                      2                      Motion for Post-Conviction Relief Pursuant to Wis. Stat. § 974.06 — State v. Marcus Johnson    IN THE CIRCUIT COURT OF MILWAUKEE COUNTY

STATE OF WISCONSIN

STATE OF WISCONSIN,    Plaintiff-Respondent,    vs.

Case No. 2018CF000847

MARCUS DEON JOHNSON,

Defendant-Appellant.

MOTION FOR POST-CONVICTION RELIEF

PURSUANT TO WIS. STAT. § 974.06

INTRODUCTION

Marcus Deon Johnson was convicted of armed robbery on June 14, 2018, following a trial infected by constitutional violations that individually undermine the verdict and collectively destroyed any possibility of a fair proceeding. Mr. Johnson now moves this Court for post-conviction relief on four independent grounds: (1) the State's deliberate suppression of an exculpatory eyewitness statement in violation of *Brady v. Maryland*; (2) the continuation of custodial interrogation after Mr. Johnson invoked his right to counsel in violation of *Edwards v. Arizona*; (3) the ineffective assistance of trial counsel in failing to investigate and present identified alibi witnesses; and (4) the cumulative effect of all errors, which denied Mr. Johnson the fundamentally fair trial the Constitution

guarantees.

**PROCEDURAL HISTORY**

Mr. Johnson was charged with one count of armed robbery in Milwaukee County Circuit Court on November 28, 2017. Trial commenced on June 12, 2018, before the Honorable Patricia K. Whitmore. On June 14, 2018, the jury returned a guilty verdict after three hours of deliberation. Mr. Johnson was sentenced to fifteen years imprisonment on August 3, 2018. He filed a timely notice of direct appeal, which was decided without raising the claims now before this Court. Mr. Johnson now brings this § 974.06 motion, supported by newly discovered evidence and a showing of ineffective assistance of appellate counsel as cause for any procedural default.

**STATEMENT OF FACTS**

The prosecution's case rested on three pillars: eyewitness identification, a statement obtained from Mr. Johnson during custodial interrogation, and a firearm recovered from his vehicle. Each pillar is now compromised.

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investigation, including the Whitfield statement; and (4) schedule a Machner evidentiary hearing on the ineffective assistance claim within 60 days.\n\nRespectfully submitted,\n\n\_\_\_\_\_\n\nCounsel for Marcus Deon Johnson\n\nCERTIFICATE OF SERVICE\n\nI hereby certify that a copy of this motion has been served upon the Milwaukee County District Attorney's Office by first-class mail on this \_\_\_\_ day of \_\_\_\_\_, 20\_\_.

2026-04-08 02:30:11.807478

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```

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ADD CONSTRAINT analysis_runs_pkey PRIMARY KEY (id);
```

```
--  
-- Name: case_strategies case_strategies_case_id_unique; Type: CONSTRAINT; Schema:  
public; Owner: postgres  
--
```

```
ALTER TABLE ONLY public.case_strategies  
  ADD CONSTRAINT case_strategies_case_id_unique UNIQUE (case_id);
```

```
--  
-- Name: case_strategies case_strategies_pkey; Type: CONSTRAINT; Schema: public; Owner:  
postgres  
--
```

```
ALTER TABLE ONLY public.case_strategies  
  ADD CONSTRAINT case_strategies_pkey PRIMARY KEY (id);
```

```
--  
-- Name: cases cases_pkey; Type: CONSTRAINT; Schema: public; Owner: postgres  
--
```

```
ALTER TABLE ONLY public.cases  
  ADD CONSTRAINT cases_pkey PRIMARY KEY (id);
```

```
--  
-- Name: categories categories_pkey; Type: CONSTRAINT; Schema: public; Owner: postgres  
--
```

```
ALTER TABLE ONLY public.categories  
  ADD CONSTRAINT categories_pkey PRIMARY KEY (id);
```

```
--  
-- Name: court_rounds court_rounds_pkey; Type: CONSTRAINT; Schema: public; Owner:  
postgres  
--
```

```
ALTER TABLE ONLY public.court_rounds  
  ADD CONSTRAINT court_rounds_pkey PRIMARY KEY (id);
```

```
--  
-- Name: court_sessions court_sessions_pkey; Type: CONSTRAINT; Schema: public; Owner:  
postgres
```

```
--  
  
ALTER TABLE ONLY public.court_sessions  
  ADD CONSTRAINT court_sessions_pkey PRIMARY KEY (id);
```

```
--  
-- Name: cross_case_matches cross_case_matches_pkey; Type: CONSTRAINT; Schema:  
public; Owner: postgres
```

```
--  
  
ALTER TABLE ONLY public.cross_case_matches  
  ADD CONSTRAINT cross_case_matches_pkey PRIMARY KEY (id);
```

```
--  
-- Name: documents documents_pkey; Type: CONSTRAINT; Schema: public; Owner: postgres
```

```
--  
  
ALTER TABLE ONLY public.documents  
  ADD CONSTRAINT documents_pkey PRIMARY KEY (id);
```

```
--  
-- Name: findings findings_pkey; Type: CONSTRAINT; Schema: public; Owner: postgres
```

```
--  
  
ALTER TABLE ONLY public.findings  
  ADD CONSTRAINT findings_pkey PRIMARY KEY (id);
```

```
--  
-- Name: motions motions_pkey; Type: CONSTRAINT; Schema: public; Owner: postgres
```

```
--  
  
ALTER TABLE ONLY public.motions  
  ADD CONSTRAINT motions_pkey PRIMARY KEY (id);
```

```
--
```

-- Name: analysis\_runs analysis\_runs\_case\_id\_cases\_id\_fk; Type: FK CONSTRAINT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.analysis_runs
  ADD CONSTRAINT analysis_runs_case_id_cases_id_fk FOREIGN KEY (case_id)
  REFERENCES public.cases(id) ON DELETE CASCADE;
```

--

-- Name: analysis\_runs analysis\_runs\_document\_id\_documents\_id\_fk; Type: FK CONSTRAINT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.analysis_runs
  ADD CONSTRAINT analysis_runs_document_id_documents_id_fk FOREIGN KEY
  (document_id) REFERENCES public.documents(id) ON DELETE CASCADE;
```

--

-- Name: case\_strategies case\_strategies\_case\_id\_cases\_id\_fk; Type: FK CONSTRAINT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.case_strategies
  ADD CONSTRAINT case_strategies_case_id_cases_id_fk FOREIGN KEY (case_id)
  REFERENCES public.cases(id) ON DELETE CASCADE;
```

--

-- Name: court\_rounds court\_rounds\_session\_id\_court\_sessions\_id\_fk; Type: FK CONSTRAINT; Schema: public; Owner: postgres

--

```
ALTER TABLE ONLY public.court_rounds
  ADD CONSTRAINT court_rounds_session_id_court_sessions_id_fk FOREIGN KEY
  (session_id) REFERENCES public.court_sessions(id) ON DELETE CASCADE;
```

--

-- Name: court\_sessions court\_sessions\_case\_id\_cases\_id\_fk; Type: FK CONSTRAINT; Schema: public; Owner: postgres

--

```

ALTER TABLE ONLY public.court_sessions
  ADD CONSTRAINT court_sessions_case_id_cases_id_fk FOREIGN KEY (case_id)
  REFERENCES public.cases(id) ON DELETE CASCADE;

--
-- Name: cross_case_matches cross_case_matches_finding_id_findings_id_fk; Type: FK
CONSTRAINT; Schema: public; Owner: postgres
--

ALTER TABLE ONLY public.cross_case_matches
  ADD CONSTRAINT cross_case_matches_finding_id_findings_id_fk FOREIGN KEY
(finding_id) REFERENCES public.findings(id) ON DELETE CASCADE;

--
-- Name: documents documents_case_id_cases_id_fk; Type: FK CONSTRAINT; Schema:
public; Owner: postgres
--

ALTER TABLE ONLY public.documents
  ADD CONSTRAINT documents_case_id_cases_id_fk FOREIGN KEY (case_id)
  REFERENCES public.cases(id) ON DELETE CASCADE;

--
-- Name: findings findings_case_id_cases_id_fk; Type: FK CONSTRAINT; Schema: public;
Owner: postgres
--

ALTER TABLE ONLY public.findings
  ADD CONSTRAINT findings_case_id_cases_id_fk FOREIGN KEY (case_id) REFERENCES
public.cases(id) ON DELETE CASCADE;

--
-- Name: findings findings_category_id_categories_id_fk; Type: FK CONSTRAINT; Schema:
public; Owner: postgres
--

ALTER TABLE ONLY public.findings
  ADD CONSTRAINT findings_category_id_categories_id_fk FOREIGN KEY (category_id)
  REFERENCES public.categories(id) ON DELETE SET NULL;

```

```

--
-- Name: findings findings_document_id_documents_id_fk; Type: FK CONSTRAINT; Schema:
public; Owner: postgres
--

ALTER TABLE ONLY public.findings
    ADD CONSTRAINT findings_document_id_documents_id_fk FOREIGN KEY (document_id)
REFERENCES public.documents(id) ON DELETE CASCADE;

--
-- Name: motions motions_case_id_cases_id_fk; Type: FK CONSTRAINT; Schema: public;
Owner: postgres
--

ALTER TABLE ONLY public.motions
    ADD CONSTRAINT motions_case_id_cases_id_fk FOREIGN KEY (case_id) REFERENCES
public.cases(id) ON DELETE CASCADE;

--
-- Name: motions motions_session_id_court_sessions_id_fk; Type: FK CONSTRAINT; Schema:
public; Owner: postgres
--

ALTER TABLE ONLY public.motions
    ADD CONSTRAINT motions_session_id_court_sessions_id_fk FOREIGN KEY (session_id)
REFERENCES public.court_sessions(id) ON DELETE SET NULL;

--
-- PostgreSQL database dump complete
--

\unrestrict w2Y58Lj7FeuHvQKkaxjY9qnJMhkGRJxEYzpoAlnwktJ63cpXoCRmKT4yjHRDqNU

```